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iMotions Online privacy policy

iMotions Online - Data Protection Rules.

In this FAQ, you can find the most relevant questions and answers related to the EU General Data Protection Regulation (GDPR) and other relevant data protection laws. as it relates to the use of iMotions Online.

Q: Is this relevant to me?

A: If you are collecting personal data from respondents residing in the European Union or a legislation area with data protection laws, you have to comply with the GDPR. Even if you or your company are not based in the European Union, you still have to comply with the GDPR as soon as you have EU residents participating in your study.
You can find more information at: https://gdpr.eu/faq/

Q: Who is the Data Controller?

A: If you initiate a study using iMotions Online and oversee its execution, you are considered the data controller. In simple terms, this means that you determine the purpose and methods of collecting and processing personal data, making you responsible for its handling.
If you, as the data controller, are located in the European Union (EU), you must ensure that the processing of personal data complies with the regulations and guidelines outlined in the General Data Protection Regulation (GDPR), as well as the relevant EU or Member State data protection laws and contractual clauses (see Article 24 of the GDPR). You must also ensure that the data processor follows your instructions regarding the processing of personal data and that such processing is lawfully carried out. This includes obtaining consent from participants and providing them with appropriate information regarding how their data will be processed.
On the other hand, if you as the data controller are not based in the EU, you are still responsible for ensuring that personal data is processed under the applicable privacy legislation. As the controller, you have the authority and obligation to make decisions regarding the purposes and methods of processing personal data.

Q: Who is the Data Processor?

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A: In all data collection projects conducted using iMotions Online, iMotions A/S acts as the Data Processor since the data is processed within the iMotions A/S cloud infrastructure.
As the Data Processor, iMotions A/S is obligated to process the Controller's data strictly per the Principal Agreement. The Processor is not authorized to process, transfer, modify, amend, or disclose the Controller Personal Data to any third party, unless explicitly instructed to do so by the Controller or if such processing is mandated by applicable EU or Member State law that the Processor must adhere to.

Q: Who is a Sub-processor?

A: Other companies authorized by iMotions A/S to process the data are referred to as sub-processors. In the context of iMotions Online, the sub-processor is Amazon Web Services, Inc. (AWS). AWS is responsible for providing the servers on which the data is stored. The service centers for AWS are located in Frankfurt-am-Main (Germany) or Manassas, Virginia (United States). iMotions has established Standard Contractual Clauses with Amazon Web Services, Inc. to ensure that appropriate data protection measures are in place for data transfers.
The Data Processor remains fully responsible to the Controller for any failure on the part of the sub-processor to fulfill their obligations related to the processing of any Personal Data under the Controller's authority.

Q: What data can / will iMotions Online store?

A: iMotions Online will only keep and store personal data collected by the Data Controller until the Data Controller chooses to delete the data. Collected data may include, but not be limited to, photos and/or videos of respondent’s faces and the environment they are situated in, recordings of the respondent’s screen during data collection, audio recordings, submitted survey answers (including names, contact information, sociodemographics, or any other data that can be relating to an identifiable person, if submitted through a survey), and other data relevant to the scope of the appropriate research study. Depending on the recording environment, similar data can be collected from an experimenter or unrelated third persons as well. Through this data, a combination of it, or by reference to an identifier, it may be possible to directly or indirectly identify a person.

Q: Where is data collected with iMotions Online hosted?

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iMotions Online is hosted with Amazon Web Services in Frankfurt-am-Main (Germany) or Manassas, Virginia (United States). No study data is saved on the respondents' computers after it has been uploaded to iMotions Online.
Eye tracking and facial expression data are processed on iMotions' servers based in Denmark (Copenhagen).

Q: How does iMotions Online ensure the safe storage and transfer of data?

A: As the Data Processor, iMotions A/S is responsible for implementing suitable technical and organizational measures to ensure the security of Controller Personal Data. These measures will be in line with the requirements stated in Article 32 of the General Data Protection Regulation (GDPR). iMotions A/S will consider factors such as the current technological advancements, the costs involved in implementation, and the nature, scope, context, and purpose of the data processing. Additionally, the potential risks to the rights and freedoms of individuals will be taken into account, considering their likelihood and severity. This ensures that the appropriate level of security is maintained for the Controller's Personal Data.

- Regarding the technical infrastructure of iMotions Online, the content delivery network uses CloudFront. Servers and workers use Elastic Compute Cloud (EC2). The database uses Relational Database Service (RDS). File storage uses Simple Storage Service (S3).
- Users have individual accounts that only allow them to access the data for their own company. Users can enable two-factor authentication for logging in to their accounts. This can be further customized by adding/removing access to specific features from users individually (i.e. role-based security). The login process happens via OAuth2 username-password flow (a.k.a. "resource owner credentials grant"), and the provided access token is then used to authenticate all subsequent communication between the browser and REST API. Users' passwords are stored in the database in salted and hashed form with bcrypt. iMotions employees use their corporate G Suite accounts to log in instead.
- Files from file storage that are intended to be viewed directly in the browser have a key embedded in their URL that is only available from an authenticated API endpoint.

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- Data is encrypted in transit by using HTTPS for all communication, including browser to CDN, CDN to load balancer, load balancer to server, and server to database/file storage. Attempting to access the web application with HTTP will automatically redirect to HTTPS.
- Data is encrypted at rest in the database with Amazon's RDS encryption feature. This also includes backups. Data is encrypted at rest in the file storage with Amazon's S3 server-side encryption feature. Credentials used by servers are stored in encrypted form in the Amazon Parameter Store. Data collected from the respondent is encrypted using SSL/HTTPS encryption when sending it to the iMotions cloud.
- Data on iMotions' local server is encrypted at rest using full disk encryption (FDE).

Q: How long does iMotions Online store data?

A: Data uploaded to iMotions Online is kept until the user deletes it. Amazon will keep backups of cloud data for 14 calendar days after which it will be deleted.

Q: What do I do if I have to remove a respondent's data?

A: It is possible to delete a respondent and their data in iMotions Online. However, iMotions Online allocates anonymous respondent identifiers by default so that other cues, for example, survey answers, need to be used to identify the respondent. Respondent videos can be deleted separately, allowing all other study data to be kept.

Q: Can I anonymize the dataset?

A: An anonymous identifier is allocated to the respondent when they participate in the study. Respondent videos can be deleted separately from all other study data. Screen recordings, survey data, and other data that could contain personal data cannot be separated from all other study data.

Q: How am I notified in case of a personal data breach?

A: The Processor will report any security incident that has resulted in a loss, misuse, or unauthorized acquisition of any personal data without undue delay to the Controller.

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